may be attractive from a policy perspective, but the FSIA neither specifies nor precludes the use of any particular address. Instead, the statute requires only that the packet be sent to a particular person—"the head of the ministry of foreign affairs." 28 U. S. C. § 1608(a)(3).

Given the unique role that embassies play in facilitating communications between states, a foreign state's embassy in Washington, D. C., is, absent an indication to the contrary, a place where a U. S. litigant can serve the state's foreign minister. Because there is no evidence in this case suggesting that Sudan's Embassy declined the service packet addressed to its foreign minister—as it was free to do—I would hold that respondents complied with the FSIA when they addressed and dispatched a service packet to Sudan's Minister of Foreign Affairs at Sudan's Embassy in Washington, D. C. Accordingly, I respectfully dissent.

I

To serve a foreign state by certified mail under the FSIA, the service packet must be "addressed and dispatched by the clerk of the court to the head of the ministry of foreign affairs of the foreign state concerned." *Ibid.* In many respects, I approach this statutory text in the same way as the Court. I have no quarrel with the majority's definitions of the relevant statutory terms, *ante*, at 8–10, and I agree that the FSIA does not deem a foreign state properly served solely because the service method is reasonably calculated to provide actual notice, *ante*, at 11–12, 17–18. Nor does the FSIA authorize service on a foreign state by utilizing an agent designated to receive process for the state. *Ante*, at 13. At the same time, the FSIA stops short of requiring that the foreign minister personally receive or sign for the service packet: As long as the service packet is "addressed and dispatched . . . to" the foreign minister, § 1608(a)(3), the minister's subordinates may accept the packet and act appropriately on his behalf. *Ante,* at 10.

In short, I agree with the majority that § 1608(a)(3) requires that the service packet be dispatched to an address for the foreign minister. The relevant question, in my view, is whether a foreign state's embassy in the United States can serve as a place where the minister of foreign affairs may be reached by mail. Unlike the majority, I conclude that it can.

II

A foreign state's embassy in Washington, D. C., is generally a place where a U. S. court can communicate by mail with the state's foreign minister. Unless an embassy decides to decline packages containing judicial summonses—as it is free to do, both in individual cases or as a broader policy—a service packet addressed and dispatched to a foreign minister at the address of its embassy in the United States satisfies § 1608(a)(3).

Because embassies are "responsible for state-to-state relationships," Malone, The Modern Diplomatic Mission, in The Oxford Handbook of Modern Diplomacy 124 (A. Cooper, J. Heine, & R. Thakur eds. 2013), an important function of an embassy or other "diplomatic mission" is to "act as a permanent channel of communication between the sending state and the receiving state," G. Berridge & A. James, A Dictionary of Diplomacy 73 (2d ed. 2003). Embassies fulfill this function in numerous ways, including by using secure faxes, e-mails, or the "diplomatic bag" to transmit documents to the states they represent. A. Aust, Handbook of International Law 122 (2d ed. 2010); see *ibid.* (the diplomatic bag is a mailbag or freight container containing diplomatic documents or articles intended for official use). Thus, as one *amicus* brief aptly puts it, embassies "have direct lines of communications with the home country, and a pipeline to route communications to the proper offices and officials." Brief for Former U. S. Counterterrorism Officials et al. as *Amici Curiae* 29.

Numerous provisions of the Vienna Convention on Diplomatic Relations (VCDR) confirm this reality, Apr. 18, 1961, 23 U. S. T. 3227, T. I. A. S. No. 7502. Under the VCDR, an embassy "may employ all appropriate means" of communicating with the state whose interests it represents, Art. 27(1), including "modern means of communication such as (mobile) telecommunication, fax, and email," Wouters, Duquet, & Meuwissen, The Vienna Conventions on Diplomatic and Consular Relations, in The Oxford Handbook of Modern Diplomacy, *supra*, at 523. The VCDR provides substantial protections for the "official correspondence of the mission" and the diplomatic bag, which may include "diplomatic documents or articles intended for official use." Arts. 27(1)–(5); cf. Vienna Convention on Consular Relations, Arts. 3, 5(j), 35, Apr. 24, 1963, 21 U. S. T. 77, T. I. A. S. No. 6820 (recognizing that embassies may perform "[c]onsular functions," such as "transmitting judicial and extrajudicial documents," and affording protections to official communications).

The capability of an embassy to route service papers to the sending state is confirmed by the State Department regulation implementing § 1608(a)(4), which provides for service on the foreign state through diplomatic channels. Under this regulation, the Department may deliver the service packet "to the embassy of the foreign state in the District of Columbia" "[i]f the foreign state so requests or if otherwise appropriate." 22 CFR § 93.1(c)(2) (2018). Although the service packet under § 1608(a)(4) need not be addressed and dispatched to the foreign minister, the regulation implementing it nevertheless demonstrates that embassies do in fact provide a channel of communication between the United States and foreign countries.

It was against this backdrop that respondents requested that their service packet be "addressed and dispatched by the clerk of the court to the head of the ministry of foreign affairs of [Sudan]," § 1608(a)(3), at the address of its embassy in Washington, D. C. Because an embassy serves as a channel through which the U. S. Government can communicate with the sending state's minister of foreign affairs, this method of service complied with the ordinary meaning of § 1608(a)(3) on this record. There is—and this is critical—no evidence in the record showing that Sudan's foreign minister could not be reached through the embassy. As the majority acknowledges, the clerk received a signed return receipt and a shipping confirmation stating that the package had been delivered. *Ante*, at 6. Nothing on the receipt or confirmation indicated that the package could not be delivered to its addressee, and both the clerk and the District Judge determined that service had been properly effectuated.

Of course, the FSIA does not impose a substantive obligation on the embassy to accept or transmit service of process directed to the attention of the foreign minister. A foreign state and its embassy are free to reject some or all packets addressed to the attention of the foreign minister. But, as detailed above, Sudan has pointed to nothing in the record suggesting that its embassy refused service or that its embassy address was not a place at which its foreign minister could be reached. On these facts, I would hold that the service packet was properly "addressed and dispatched by the clerk of the court to the head of the ministry of foreign affairs." § 1608(a)(3).

III

A

Instead of focusing on whether service at an embassy satisfies the FSIA, the Court articulates a bright-line rule: To comply with § 1608(a)(3), "[a] service packet must be addressed and dispatched to the foreign minister *at the minister's office in the foreign state*." *Ante*, at 19 (emphasis added). Whatever virtues this rule possesses, the Court's interpretation is not the "most natural reading" of § 1608(a)(3), *ante*, at 8.

The Court focuses on the foreign minister's "customary office" or "place of work," *ante*, at 11, 9, but these terms appear nowhere in § 1608. The FSIA requires that the service packet be "addressed and dispatched" to a particular *person*—"the head of the ministry of foreign affairs." § 1608(a)(3). It does not further require that the package be addressed and dispatched to any particular *place*. While I agree with the Court that sending the service packet to the foreign ministry is one way to satisfy § 1608(a)(3), that is different from saying that § 1608(a)(3) requires service exclusively at that location.

The absence of a textual foundation for the majority's rule is only accentuated when § 1608(a)(3) is compared to § 1608(a)(4), the adjacent paragraph governing service through diplomatic channels. Under that provision, the service packet must be "addressed and dispatched by the clerk of the court to the Secretary of State *in Washington, District of Columbia*, to the attention of the Director of Special Consular Services." § 1608(a)(4) (emphasis added); see 22 CFR § 93.1(c) (State Department regulation governing service under this provision). Unlike § 1608(a)(3), this provision specifies both the person to be served *and* the location of service. While not dispositive, the absence of a similar limitation in § 1608(a)(3) undermines the categorical rule adopted by the Court.

The Court offers three additional arguments in support of its position, but none justifies its bright-line rule.

First, the Court offers a series of hypotheticals to suggest that the term "dispatched" not only contemplates a prompt shipment but also connotes sending the letter directly to a place where the person is likely to be physically located. *Ante*, at 10. In my opinion, these hypotheticals are inapt. The unique role of an embassy in facilitating communications between sovereign governments does not have an analog in the hypotheticals offered by the majority.[1] And to the ex-

[1] To the extent the relationship between a U. S. attorney's office and the Attorney General is analogous, the majority correctly acknowledges that the office would "very probably forward" a letter directed to the attention

tent the statute emphasizes speed and directness, as the majority suggests, dispatching a letter to a Washington-based embassy with a direct line of communication to the foreign minister—including the ability to communicate electronically—seems at least as efficient as dispatching the letter across the globe to a foreign country, particularly if that country has recently experienced armed conflict or political instability.

Second, the Court notes that, under its rule, the effective date of service under § 1608(c) will be closer in time to when the service packet reaches a foreign official who knows how to respond to the summons. *Ante*, at 13–15. That contention assumes embassy employees are less capable of responding to a summons than foreign-ministry employees. But even granting that premise, this argument falls short. An embassy is capable of quickly transmitting a summons to the foreign minister, whether electronically, by diplomatic bag, or by some other means. Any time lost in transmission is not significant enough to warrant the Court's departure from the text of the statute.

Third, the Court argues that allowing service at the embassy would make it easier to serve a foreign state than it is to serve a person in that foreign state under Federal Rule of Civil Procedure 4. *Ante*, at 15–16. I am not persuaded. Under the FSIA, service by mail is not effective until "the date of receipt indicated in the . . . signed and returned postal receipt." § 1608(c)(2). That is no more generous than practice under Rule 4, especially since the foreign minister need not accept service. To the extent that embassies

of the Attorney General. *Ante*, at 10. The majority nevertheless believes that it would be improper or unusual to dispatch that letter to a local U. S. attorney's office. I disagree. It seems entirely likely that a person residing in the District of Idaho would dispatch a letter to the Attorney General through the U. S. attorney's office serving his District—even if it would be odd for a resident of the District of Columbia to use that Idaho address.

accept service of process directed to the foreign minister, it is that decision that eases the burden on the plaintiff, not § 1608(a)(3).

B

Sudan also argues that allowing service by mail at an embassy would violate Article 22(1) of the VCDR. The Court does not adopt Sudan's argument, stating only that its decision has "the virtue of avoiding potential tension" with the VCDR. *Ante*, at 15. But there is no tension between my reading of the FSIA and the VCDR.[2]

Article 22(1) of the VCDR provides that the premises of the mission—that is, "the buildings or parts of buildings and the land ancillary thereto . . . used for the purposes of the mission," Art. 1(i)—"shall be inviolable." The VCDR consistently uses the word "inviolable" to protect against physical intrusions and similar types of interference, not the jurisdiction of a court. The concept of "inviolability" is used, for instance, to protect the mission's "premises," Art. 22(1); the "archives and documents of the mission," Art. 24; the "official correspondence of the mission," Art. 27(2); the "private residence of a diplomatic agent," Art. 30(1); and the diplomatic agent's "person," "papers, correspondence, and," with certain exceptions, "his property," Arts. 29, 30(2).

The provisions of the VCDR that protect against assertions of jurisdiction, by contrast, speak in terms of "immunity." Thus, in addition to physical inviolability, the premises of the mission (and "other property thereon") are separately "immune from search, requisition, attachment or execution." Art. 22(3). And a diplomatic agent is separately "immun[e] from the criminal jurisdiction of the receiving State" and, generally, from "its civil and administrative jurisdiction." Art. 31(1). Several provisions of the VCDR

---

[2] Even if there were, the FSIA postdates the VCDR and thus " 'renders the treaty null' " " 'to the extent of conflict.' " *Breard* v. *Greene*, 523 U. S. 371, 376 (1998) (*per curiam*) (quoting *Reid* v. *Covert*, 354 U. S. 1, 18 (1957) (plurality opinion)).

distinguish between "immunity from jurisdiction, and inviolability." Art. 38(1); see Arts. 31(1), (3).

Given the VCDR's consistent use of "inviolability" to protect against physical intrusions and interference, and "immunity" to protect against judicial authority, Article 22(1)'s protection of the mission premises is best understood as a protection against the former. Thus, under the VCDR, the inviolability of the embassy's premises is not implicated by receipt of service papers to any greater degree than it is by receipt of other mail. Cf. *Reyes* v. *Al-Malki*, [2017] UKSC 61, ¶16 (holding that service via mail at the diplomatic residence—which is afforded the same level of protection as the mission premises under Article 30(1)—does not violate the VCDR).

* * *

Because the method of service employed by respondents here complied with the FSIA, I would affirm the judgment of the Second Circuit.

STURGEON *v.* FROST, IN HIS OFFICIAL CAPACITY AS ALASKA REGIONAL DIRECTOR OF THE NATIONAL PARK SERVICE, ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

No. 17–949. Argued November 5, 2018—Decided March 26, 2019

The Alaska National Interest Lands Conservation Act (ANILCA) set aside 104 million acres of federally owned land in Alaska for preservation purposes. With that land, ANILCA created ten new national parks, monuments, and preserves (areas known as "conservation system units"). 16 U. S. C. § 3102(4). And in sketching those units' boundary lines, Congress made an uncommon choice—to follow natural features rather than enclose only federally owned lands. It thus swept in a vast set of so-called inholdings—more than 18 million acres of state, Native, and private land. Had Congress done nothing more, those inholdings could have become subject to many National Park Service rules, as the Service has broad authority under its Organic Act to administer both lands and waters within parks across the country. 54 U. S. C. § 100751. But Congress added Section 103(c), the provision principally in dispute in this case. Section 103(c)'s first sentence states that "[o]nly" the "public lands"—defined as most federally owned lands, waters, and associated interests—within any system unit's boundaries are "deemed" a part of that unit. 16 U. S. C. § 3103(c). The second sentence provides that no state, Native, or private lands "shall be subject to the regulations applicable solely to public lands within [system] units." *Ibid.* And the third sentence permits the Service to "acquire such lands" from "the State, a Native Corporation, or other owner," after which it may "administer[ ]" the land just as it does the other "public lands within such units." *Ibid.*

Petitioner John Sturgeon traveled for decades by hovercraft up a stretch of the Nation River that lies within the boundaries of the Yukon-Charley Preserve, a conservation system unit in Alaska. On one such trip, park rangers informed him that the Service's rules prohibit operating a hovercraft on navigable waters "located within [a park's] boundaries." 36 CFR § 2.17(e). That regulation—issued under the Service's Organic Act authority—applies to parks nationwide without any "regard to the ownership of submerged lands, tidelands, or lowlands." § 1.2(a)(3). Sturgeon complied with the order, but shortly thereafter sought an injunction that would allow him to resume using his hovercraft on his accustomed route. The District Court and the Ninth Circuit denied him relief, interpreting Section 103(c) to limit only the Service's authority to impose Alaska-specific regulations on inholdings—not its authority to enforce nationwide regulations like the hovercraft rule. This Court granted review and rejected that ground for dismissal, but it remanded for consideration of two further questions: whether the Nation River "qualifies as 'public land' for purposes of ANILCA," thus indisputably subjecting it to the Service's regulatory authority; and, if not, whether the Service could nevertheless "regulate Sturgeon's activities on the Nation River." *Sturgeon* v. *Frost*, 577 U. S. 424, 441 (*Sturgeon I*). The Ninth Circuit never got past the first question, as it concluded that the Nation River was public land.

Held:

1. The Nation River is not public land for purposes of ANILCA. "[P]ublic land" under ANILCA means (almost all) "lands, waters, and interests therein" the "title to which is in the United States." 16 U. S. C. § 3102(1)–(3). Because running waters cannot be owned, the United States does not have "title" to the Nation River in the ordinary sense. And under the Submerged Lands Act, it is the State of Alaska—not the United States—that holds "title to and ownership of the lands beneath [the River's] navigable waters." 43 U. S. C. § 1311. The Service therefore argues that the United States has "title" to an "interest" in the Nation River under the reserved-water-rights doctrine, which provides that when the Federal Government reserves public land, it can retain rights to the specific "amount of water" needed to satisfy the purposes of that reservation. See *Cappaert* v. *United States*, 426 U. S. 128, 138–141. But even assuming that the Service held such a right, the Nation River itself would not thereby become "public land" in the way the Service contends. Under ANILCA, the "public land" would consist only of the Federal Government's specific "interest" in the River—*i. e.*, its reserved water right. And that right, the Service agrees, merely allows it to protect waters in the park from depletion or diversion. The right could not justify applying the hovercraft rule on the Nation River, as that rule targets nothing of the kind. Pp. 42–45.

2. Non-public lands within Alaska's national parks are exempt from the Park Service's ordinary regulatory authority. Section 103(c) arose out of concern from the State, Native Corporations, and private individuals that ANILCA's broadly drawn boundaries might subject their properties to Park Service rules. Section 103(c)'s first sentence therefore sets out which land within those new parks qualify as parkland—"[o]nly" the "public lands" within any system unit's boundaries are "deemed" a part of that unit. By negative implication, non-public lands are

"deemed" outside the unit. In other words, non-federally owned lands inside system units (on a map) are declared outside them (for the law). The effect of that exclusion, as Section 103(c)'s second sentence affirms, is to exempt non-public lands, including waters, from Park Service regulations. That is, the Service's rules will apply "solely" to public lands within the units. 16 U. S. C. § 3103(c). And for that reason, the third sentence provides a kind of escape hatch—it allows the Service to acquire inholdings when it believes regulation of those lands is needed.

The Service's alternative interpretation of Section 103(c) is unpersuasive. The provision's second sentence, it says, means that if a Park Service regulation on its face applies "solely" to public lands, then the regulation cannot apply to non-public lands. But if instead the regulation covers public and non-public lands alike, then the second sentence has nothing to say: The regulation can indeed cover both. On that view, Section 103(c)'s second sentence is a mere truism, not any kind of limitation. It does nothing to exempt inholdings from any regulation that might otherwise apply. And because that is so, the Government's reading also strips the first and third sentences of their core functions. The first sentence's "deeming" has no point, since there is no reason to pretend that inholdings are not part of a park if they can still be regulated as parklands. And the third sentence's acquisition option has far less utility if the Service has its full regulatory authority over lands the Federal Government does not own. This sort of statute-gutting cannot be squared with ANILCA's text and context. Pp. 45–55.

3. Navigable waters within Alaska's national parks—no less than other non-public lands—are exempt from the Park Service's normal regulatory authority. The Service argues that, if nothing else, ANILCA must at least allow it to regulate navigable waters. The Act, however, does not readily allow the decoupling of navigable waters from other non-federally owned areas in Alaskan national parks. ANILCA defines "land" to mean "lands, waters, and interests therein," § 3102(1)–(3); so when it refers to "lands" in Section 103(c) (and throughout the Act) it means waters as well. Nothing in the few aquatic provisions to which the Service points conflicts with reading Section 103(c)'s regulatory exemption to cover navigable waters. The Government largely relies on the Act's statements of purpose, but this Court's construction leaves the Service with multiple tools to "protect" and "preserve" rivers in Alaska's national parks, as those provisions anticipate. See, *e. g.*, §§ 3181(j), 3191(b)(7). While such authority might fall short of the Service's usual power, it accords with ANILCA's "repeated[ ] recogni[tion]" that Alaska is "the exception, not the rule." *Sturgeon I*, 577 U. S., at 438, 440. Pp. 55–58.

872 F. 3d 927, reversed and remanded.

KAGAN, J., delivered the opinion for a unanimous Court. SOTOMAYOR, J., filed a concurring opinion, in which GINSBURG, J., joined, *post*, p. 59.

Matthew T. Findley argued the cause for petitioner. With him on the briefs were *Eva R. Gardner*, *William S. Consovoy*, *Jeffrey M. Harris*, *J. Michael Connolly*, and *Douglas Pope*.

Ruth Botstein argued the cause for the State of Alaska as *amicus curiae* urging reversal. With her on the brief were *Jahna Lindemuth*, Attorney General of Alaska, and *Kathryn R. Vogel*.

Deputy Solicitor General Kneedler argued the cause for respondents. With him on the brief were *Solicitor General Francisco*, *Acting Assistant Attorney General Wood*, *Rachel P. Kovner*, *Andrew C. Mergen*, and *Elizabeth Ann Peterson*.*

JUSTICE KAGAN delivered the opinion of the Court.

This Court first encountered John Sturgeon's lawsuit three Terms ago. See *Sturgeon* v. *Frost*, 577 U. S. 424 (2016) (*Sturgeon I*). As we explained then, Sturgeon hunted

---

*Briefs of *amici curiae* urging reversal were filed for the State of Idaho et al. by *Lawrence G. Wasden*, Attorney General of Idaho, *Darrell G. Early*, *Steven W. Strack*, and *Shantel M. Chapple Knowlton*, Deputy Attorneys General, and by the Attorneys General for their respective States as follows: *Mark Brnovich* of Arizona, *Leslie Rutledge* of Arkansas, *Curtis T. Hill, Jr.*, of Indiana, *Adam Paul Laxalt* of Nevada, *Doug Peterson* of Nebraska, *Alan Wilson* of South Carolina, *Brad D. Schimel* of Wisconsin, and *Peter K. Michael* of Wyoming; for the Citizens Equal Rights Foundation et al. by *James J. Devine, Jr.*; for the Pacific Legal Foundation by *Anthony L. François* and *Damien M. Schiff*; and for Safari Club International by *Anna M. Seidman* and *Douglas S. Burdin*.

Briefs of *amici curiae* urging affirmance were filed for Alaska Native Subsistence Users by *Robert T. Anderson*, *Carter G. Phillips*, *Virginia A. Seitz*, *Heather R. Kendall Miller*, and *Lloyd B. Miller*; for Law Professors by *Amanda C. Leiter*, *Michael Pappas*, and *Justin R. Pidot*; and for National Parks Conservation Association et al. by *Valerie Brown*, *Katherine Strong*, *Thomas E. Meacham*, and *Donald B. Ayer*.

Jonathan W. Katchen, *Sarah C. Bordelon*, *Bryson C. Smith*, and *Nicholas Ostrovsky* filed a brief of *amicus curiae* for Ahtna, Inc.

moose along the Nation River in Alaska for some 40 years. See *id.*, at 427. He traveled by hovercraft, an amphibious vehicle able to glide over land and water alike. To reach his favorite hunting ground, he would pilot the craft over a stretch of the Nation River that flows through the Yukon-Charley Rivers National Preserve, a unit of the federal park system managed by the National Park Service. On one such trip, park rangers informed Sturgeon that a Park Service regulation prohibits the use of hovercrafts on rivers within any federal preserve or park. Sturgeon complied with their order to remove his hovercraft from the Yukon-Charley, thus "heading home without a moose." *Id.*, at 432. But soon afterward, Sturgeon sued the Park Service, seeking an injunction that would allow him to resume using his hovercraft on his accustomed route. The lower courts denied him relief. This Court, though, thought there was more to be said. See *id.*, at 441.

As we put the matter then, Sturgeon's case raises the issue how much "Alaska is different" from the rest of the country—how much it is "the exception, not the rule." *Id.*, at 438, 440. The rule, just as the rangers told Sturgeon, is that the Park Service may regulate boating and other activities on waters within national parks—and that it has banned the use of hovercrafts there. See 54 U. S. C. §100751(b); 36 CFR §2.17(e) (2018). But Sturgeon claims that Congress created an Alaska-specific exceptionto that broad authority when it enacted the Alaska National Interest Lands Conservation Act (ANILCA), 94 Stat. 2371,16 U. S. C. §3101 *et seq.* In Alaska, Sturgeon argues, the Park Service has no power to regulate lands or waters that the Federal Government does not own; rather, the Service may regulate only what ANILCA calls "public land" (essentially, federally owned land) in national parks. And, Sturgeon continues, the Federal Government does not own the Nation River—so the Service cannot ban hovercrafts there. When we last faced that argument, we disagreed with the reason the lower courts gave to reject it. But we remanded the case for consideration of two remaining questions. First, does "the Nation River qualif[y] as 'public land' for purposes of ANILCA"? 577 U. S., at 441. Second, "even if the [Nation] is not 'public land,'" does the Park Service have authority to "regulate Sturgeon's activities" on the part of the river in the Yukon-Charley? *Ibid.* Today, we take up those questions, and answer both "no." That means Sturgeon can again rev up his hovercraft in search of moose.

I

A

We begin, as *Sturgeon I* did, with a slice of Alaskan history. The United States purchased Alaska from Russia in 1867. It thereby acquired "[i]n a single stroke" 365 million acres of land—an area more than twice the size of Texas. *Id.*, at 428. You might think that would be enough to go around. But in the years since, the Federal Government and Alaskans (including Alaska Natives) have alternately contested and resolved and contested and . . . so forth who should own and manage that bounty. We offer here a few highlights because they are the backdrop against which Congress enacted ANILCA. As we do so, you might catch a glimpse of some former-day John Sturgeons—who (for better or worse) sought greater independence from federal control and, in the process, helped to shape the current law.

For 90 years after buying Alaska, the Federal Government owned all its land. At first, those living in Alaska—a few settlers and some 30,000 Natives—were hardly aware of that fact. See E. Gruening, The State of Alaska 355 (1968). American citizens mocked the Alaska purchase as Secretary of State "Seward's Folly" and President Johnson's "Polar Bear Garden." They paid no attention to the new area, leading to an "era of total neglect." *Id.*, at 31. But as *Sturgeon I* recounted, the turn of the century brought "newfound recognition of Alaska's economic potential." 577 U. S., at

428. Opportunities to mine, trap, and fish attracted tens of thousands more settlers and sparked an emerging export economy. And partly because of that surge in commercial activity, the country's foremost conservationists—President Theodore Roosevelt and Gifford Pinchot, chief of the fledgling Forest Service—took unprecedented action to protect Alaska's natural resources. In particular, Roosevelt (and then President Taft) prevented settlers from logging or coal mining on substantial acreage. See W. Borneman, Alaska: Saga of a Bold Land 240–241 (2003). Alaskans responded by burning Pinchot in effigy and, more creatively, organizing the "Cordova Coal Party"—a mass dumping of imported Canadian coal (instead of English tea) into the Pacific Ocean (instead of Boston Harbor). See *ibid.* The terms of future conflict were thus set: resource conservation vs. economic development, federal management vs. local control.

By the 1950s, Alaskans hankered for both statehood and land—and Congress decided to give them both. In pressing for statehood, Alaska's delegate to the House of Representatives lamented that Alaskans were no better than "tenants upon the estate of the national landlord"; and Alaska's Governor (then a Presidential appointee) called on the country to "[e]nd American [c]olonialism." W. Everhart, The National Park Service 126–127 (1983) (Everhart). Ever more aware of Alaska's economic and strategic importance, Congress agreed the time for statehood had come. The 1958 Alaska Statehood Act, 72 Stat. 339, made Alaska the country's 49th State. And because the new State would need property—to propel private industry and create a tax base—the Statehood Act made a land grant too. Over the next 35 years, Alaska could select for itself 103 million acres of "vacant, unappropriated, and unreserved" federal land—an area totaling the size of California. § 6(a)–(b), 72 Stat. 340, as amended; see Everhart 127. And more: By incorporating the Submerged Lands Act of 1953, the Statehood Act gave Alaska "title to and ownership of the lands beneath navigable waters," such as the Nation River. 43 U. S. C. § 1311; see § 6(m), 72 Stat. 343. And a State's title to the lands beneath navigable waters brings with it regulatory authority over "navigation, fishing, and other public uses" of those waters. *United States* v. *Alaska*, 521 U. S. 1, 5 (1997). All told, the State thus emerged a formidable property holder.

But the State's bonanza provoked land claims from Alaska Natives. Their ancestors had lived in the area for thousands of years, and they asserted aboriginal title to much of the property the State was now taking (and more besides). See Everhart 127. When their demands threatened to impede the trans-Alaska pipeline, Congress stepped in. The Alaska Native Claims Settlement Act of 1971 (ANCSA) extinguished the Natives' aboriginal claims. See 85 Stat. 688, as amended, 43 U. S. C. § 1601 *et seq.* But it granted the Natives much in return. Under the law, corporations organized by groups of Alaska Natives could select for themselves 40 million acres of federal land—equivalent, when combined, to all of Pennsylvania. See §§ 1605, 1610–1615. So the Natives became large landowners too.

Yet one more land dispute loomed. In addition to settling the Natives' claims, ANCSA directed the Secretary of the Interior (Secretary) to designate, subject to congressional approval, 80 million more acres of federal land for inclusion in the national park, forest, or wildlife systems. See § 1616(d)(2). The Secretary dutifully made his selections, but Congress failed to ratify them within the five-year period ANCSA had set. Rather than let the designations lapse, President Carter invoked another federal law (the 1906 Antiquities Act) to proclaim most of the lands (totaling 56 million acres) national monuments, under the National Park Service's aegis. See 577 U. S., at 430. Many Alaskans balked. "[R]egard[ing] national parks as just one more example of federal interference," protesters demonstrated throughout the State and several thousand joined in the so-called Great Denali-McKinley Trespass. Everhart 129; see

577 U. S., at 430. "The goal of the trespass," as *Sturgeon I* explained, "was to break over 25 Park Service rules in a two-day period." *Ibid.* One especially eager participant played a modern-day Paul Revere, riding on horseback through the crowd to deliver the message: "The Feds are coming! The Feds are coming!" *Ibid.* (internal quotation marks omitted).

And so they were—but not in quite the way President Carter had contemplated. Responding to the uproar his proclamation had set off, Congress enacted a third major piece of legislation allocating land in Alaska. We thus reach ANILCA, the statute principally in dispute in this case, in which Congress set aside extensive land for national parks and preserves—but on terms different from those governing such areas in the rest of the country.

B

Starting with the statement of purpose in its first section, ANILCA sought to "balance" two goals, often thought conflicting. 16 U. S. C. §3101(d). The Act was designed to "provide[ ] sufficient protection for the national interest in the scenic, natural, cultural and environmental values on the public lands in Alaska." *Ibid.* "[A]nd at the same time," the Act was framed to "provide[ ] adequate opportunity for satisfaction of the economic and social needs of the State of Alaska and its people." *Ibid.* So if, as you continue reading, you see some tension within the statute, you are not mistaken: It arises from Congress's twofold ambitions.

ANILCA set aside 104 million acres of federally owned land in Alaska for preservation purposes. See 577 U. S., at 431. In doing so, the Act rescinded President Carter's monument designations. But it brought into the national park, forest, or wildlife systems millions more acres than even ANCSA had contemplated. The park system's share of the newly withdrawn land (to be administered, as usual, by the

Park Service) was nearly 44 million acres—an amount that more than doubled the system's prior (nationwide) size. See Everhart 132. With that land, ANILCA created ten new national parks, monuments, and preserves—including the Yukon-Charley Preserve—and expanded three old ones. See §§ 410hh, 410hh–1. In line with the Park Service's usual terminology, ANILCA calls each such park or other area a "conservation system unit." § 3102(4) ("The term . . . means any unit in Alaska of the National Park System"); see 54 U. S. C. § 100102(6) (similar).

In sketching those units' boundary lines, Congress made an uncommon choice—to follow "topographic or natural features," rather than enclose only federally owned lands. § 3103(b); see Brief for Respondents 24 (agreeing that "ANILCA [is] atypical in [this] respect"). In most parks outside Alaska, boundaries surround mainly federal property holdings. "[E]arly national parks were carved out of a larger public domain, in which virtually all land" was federally owned. Sax, Helpless Giants: The National Parks and the Regulation of Private Lands, 75 Mich. L. Rev. 239, 263 (1976); see Dept. of Interior, Nat. Park Serv., Statistical Abstract 87 (2017) (Table 9) (noting that only 2 of Yellowstone's 2.2 million acres are in non-federal hands). And even in more recently established parks, Congress has used gerrymandered borders to exclude most non-federal land. See Sax, Buying Scenery, 1980 Duke L. J. 709, 712, and n. 12. But Congress had no real way to do that in Alaska. Its prior cessions of property to the State and Alaska Natives had created a "confusing patchwork of ownership" all but impossible to draw one's way around. C. Naske & H. Slotnick, Alaska: A History 317 (3d ed. 2011). What's more, an Alaskan Senator noted, the United States might want to reacquire state or Native holdings in the same "natural areas" as reserved federal land; that could occur most handily if Congress drew boundaries, "wherever possible, to encompass" those holdings and authorized the Secretary to buy whatever lay inside. 126 Cong. Rec. 21882 (1980) (remarks of Sen. Stevens). The upshot was a vast set of so-called inholdings—more than 18 million acres of state, Native, and private land—that wound up inside Alaskan system units. See 577 U. S., at 431.

Had Congress done nothing more, those inholdings could have become subject to many Park Service rules—the same kind of "restrictive federal regulations" Alaskans had protested in the years leading up to ANILCA (and further back too). *Id.*, at 430. That is because the Secretary, acting through the Director of the Park Service, has broad authority under the National Park Service Organic Act (Organic Act), 39 Stat. 535, to administer both lands and waters within all system units in the country. See 54 U. S. C. §§ 100751, 100501, 100102. The Secretary "shall prescribe such regulations as [he] considers necessary or proper for the use and management of System units." § 100751(a). And he may, more specifically, issue regulations concerning "boating and other activities on or relating to water located within System units." § 100751(b). Those statutory grants of power make no distinctions based on the ownership of either lands or waters (or lands beneath waters).[1] And although the Park Service has sometimes chosen not to regulate non-federally owned lands and waters, it has also imposed major restrictions on their use. Rules about mining and solid-waste disposal, for example, apply to all lands within system units "whether federally or nonfederally owned." 36 CFR § 6.2; see § 9.2. And (of particular note here) the Park Service freely regulates activities on all navigable (and some other) waters "within [a park's] boundaries"—once more, "without regard to . . . ownership." § 1.2(a)(3). So Alaska and its

[1] None of the parties here have questioned the constitutional validity of the above statutory grants as applied to inholdings, and we therefore do not address the issue. Cf. *Kleppe* v. *New Mexico*, 426 U. S. 529, 536–541 (1976); *Kansas* v. *Colorado*, 206 U. S. 46, 88–89 (1907).

Natives had reason to worry about how the Park Service would regulate their lands and waters within the new parks.

Congress thus acted, as even the Park Service agrees, to give the State and Natives "assurance that [their lands] wouldn't be treated just like" federally owned property. Tr. of Oral Arg. 52. (It is only—though this is quite a large "only"—the nature and extent of that assurance that is in dispute.) The key provision here is Section 103(c), which contains three sentences that may require some re-reading. We quote it first in one block; then provide some definitions; then go over it again a bit more slowly. But still, you should expect to return to this text as you proceed through this opinion.

Section 103(c) provides in full:

> "Only those lands within the boundaries of any conservation system unit which are public lands (as such term is defined in this Act) shall be deemed to be included as a portion of such unit. No lands which, before, on, or after [the date of ANILCA's passage], are conveyed to the State, to any Native Corporation, or to any private party shall be subject to the regulations applicable solely to public lands within such units. If the State, a Native Corporation, or other owner desires to convey any such lands, the Secretary may acquire such lands in accordance with applicable law (including this Act), and any such lands shall become part of the unit, and be administered accordingly." § 3103(c).

Now for the promised definitions. The term "land," as found in all three sentences, actually—and crucially for this case—"means lands, waters, and interests therein." § 3102(1). The term "public lands," in the first two sentences, then means "lands" (including waters and interests therein) "the title to which is in the United States"—except for lands selected for future transfer to the State or Native Corporations (under the Statehood Act or ANCSA).